

**BEFORE THE  
OFFICE OF ADMINISTRATIVE HEARINGS  
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of  
Suspension of:**

**ULISES SANCHEZ-JIMENEZ, a Permanent Certificated  
Employee,**

**Moving Party,**

**and**

**COACHELLA VALLEY UNIFIED SCHOOL DISTRICT,  
Responding Party.**

**OAH No. 2025030048**

**ORDER DENYING MOTION FOR IMMEDIATE REVERSAL OF  
SUSPENSION**

Harden Sooper, Administrative Law Judge, Office of Administrative Hearings (OAH), State of California, heard this matter by videoconference on March 28, 2025.

Jon Y. Vanderpool, Attorney at Law, represented moving party Ulises Sanchez-Jimenez (Teacher).

Victor I. King and Denise Wong, Attorneys at Law, represented responding party Coachella Valley Unified School District (District).

The District has suspended Teacher without pay pending the outcome of its action to dismiss Teacher. The basis for the suspension under Education Code section 44939 is immoral conduct. In his motion (Motion), Teacher seeks an order for the immediate reversal of his suspension. The District opposes the Motion.

Counsel for both parties presented oral argument at the motion hearing. The parties did not dispute that the Statement of Charges, attached as Exhibit A to the Motion, is the operative pleading for this proceeding.

### **Motion for Immediate Reversal of Suspension**

A school district may immediately suspend without pay a permanent certificated employee charged with immoral conduct. (Ed. Code, § 44939, subd. (b).) A suspended employee may file a motion for immediate reversal of the suspension with OAH. (Ed. Code, § 44939, subd. (c)(1).) An administrative judge's review of the suspended employee's motion shall be "limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section." (Ed. Code, § 44939, subd. (c)(1).)

Although the administrative law judge must accept well-pleaded facts in the statement of charges as true, the administrative law judge need not accept contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Conclusory characterizations of conduct as intentional, willful, or fraudulent are "patently insufficient." (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Where reading the allegations reveals the existence of an affirmative defense, the

complaining party must plead around the defense by alleging specific facts that would avoid the apparent defense. (*Blank, supra*, 39 Cal.3d at p. 318.)

## **Statement of Charges**

During the relevant period, Teacher was employed by District as a teacher at Desert Mirage High School. The Statement of Charges alleges Teacher engaged in immoral conduct in violation of Education Code section 44932, subdivision (a)(1), among other violations of the Education and Business and Professions Codes.

The Statement of Charges sets forth 10 paragraphs detailing specific acts the District alleges constitute immoral conduct.

Paragraph 1 alleges on February 16, 2024, Teacher instructed student G.C. to stay after class; closed the classroom door; scrolled through her phone without her permission; stroked and played with her hair; leaned over and placed his hand over G.C.'s hand while she was writing with a pencil, moving his hand back and forth and rubbing G.C.'s breast with his arm; and stared at G.C.'s chest while she was working and told G.C. he liked watching her work.

Paragraph 2 alleges on February 20, 2024, when G.C. entered Teacher's classroom, Teacher screamed and caused G.C. to become upset and scared. Teacher laughed and told G.C., "You're scared of me." Teacher passed by G.C.'s desk several times during the subsequent class period, staring at her chest and making her feel uncomfortable.

Paragraph 3 alleges multiple incidents during the 2023–2024 school year in which Teacher inappropriately touched students, including: (1) grabbing student Y.P.'s hair, smelling it, and asking if Y.P. took a shower because she smelled really nice; (2)

grabbing a female student's ponytail and making a windmill motion with it; and (3) rubbing student D.L.'s shoulders during class.

Paragraph 4 alleges eight students reported Teacher touched students in ways that made them feel uncomfortable, including touching their shoulders, putting his arm around them, and hugging them.

Paragraph 5 alleges Teacher often stared at female students, causing them to feel uncomfortable.

Paragraph 6 alleges Teacher made multiple inappropriate comments to students during the 2023–2024 school year, including (1) calling a student a "little calientita," or "little hot babe"; (2) telling a student "don't get a boyfriend"; (3) joking that a student was trying to blow him a kiss; (4) telling a student she looked "really good" in her shirt and staring the student up and down; and (5) commenting on a student's piercing.

Paragraph 7 alleges Teacher held a student's hand and took off her gloves and put the gloves back on and that Teacher grabbed a student's drink and smelled it without the student's permission.

Paragraph 8 alleges Teacher made unprofessional comments and jokes, including (1) telling a student she needed to answer questions faster; (2) asking a student if they had "learning problems"; (3) mispronouncing a student's name even after the student corrected Teacher several times; (4) calling a student "lazy"; and (5) joking about a student having lice.

Paragraph 9 alleges Teacher asked students to stay after class, during lunch, or after school to make up tests or other assignments. On one occasion, a student

reported Teacher stood close to a female student who was finishing a test in the classroom.

Paragraph 10 alleges Teacher was dishonest with the District when interviewed about these allegations.

The District contends the foregoing conduct warrants Teacher's immediate dismissal without pay. Teacher contends the District failed to plead sufficient facts to establish immoral conduct. Teacher concedes the District's most serious allegation, that Teacher rubbed a student's breast, constitutes immoral conduct if true. However, Teacher contends the District's exhibits, incorporated into the Statement of Charges, do not support the allegation, citing student G.C.'s written complaint stating Teacher "almost touch[ed]" her breast. (Statement of Charges, Ex. 2.)

## **Immoral Conduct**

"[T]he term 'immoral conduct' in section 44932, subdivision (a)(1) 'stretch[es] over so wide a range' of conduct that it 'embrace[s] an unlimited area of conduct.'" (*Crawford v. Com. on Prof. Competence* (2020) 53 Cal.App.5th 327, 337 (*Crawford*), quoting *Morrison v. State Bd. of Education* (1969) 1 Cal.3d 214, 224-225.) Courts have defined immoral conduct in school settings as conduct "'hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as wil[l]ful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public

welfare.'" (*Bd. of Education of S.F. Unified School Dist. v. Weiland (Weiland)* (1960) 179 Cal.App.2d 808, 811, quoting *Orloff v. L.A. Turf Club* (1951) 36 Cal.2d 734, 740.)

Immoral conduct also "must be considered in conjunction with the unique position of public school teachers, upon whom are imposed 'responsibilities and limitations on freedom of action which do not exist in regard to other callings.'" (*San Diego Unified School Dist. v. Com. on Prof. Competence* (2011) 194 Cal.App.4th 1454, 1466.) "Thus, the term must be 'considered in the context in which the Legislature considered it, as conduct which is hostile to the welfare of the general public . . . more specifically in this case, conduct which is hostile to the welfare of the school community.'" (*Crawford, supra*, 53 Cal.App.5th at p. 337, quoting *Morrison, supra*, 1 Cal.3d at p. 224.)

## **Analysis**

Certain of the allegations of Teacher's misconduct in his actions towards students, if true, are sufficient to sustain Teacher's immediate suspension based on immoral conduct. Specifically, rubbing a student's breast with his arm, telling a student she smelled nice, rubbing a student's shoulders, calling a student a "little calientita," telling a student not to get a boyfriend, joking that a student was trying to blow him a kiss, telling a student she looked really good in her shirt, calling a student lazy, and joking about a student having lice are offensive, indecent, and depraved acts that show flagrant or shameless indifference to community standards and/or are hostile to the students in Teacher's classroom.

Teacher conceded rubbing a student's breast is immoral conduct. His argument the District's exhibits, incorporated into the Statement of Charges, do not support the allegation was not persuasive for purposes of this Motion.

Teacher argued his alleged misconduct, other than rubbing a student's breast, even if true, does not fall into three categories of behavior recognized by courts as constituting immoral conduct: (1) sexual harassment or public sexual activity by a teacher, (2) a teacher's drug use or possession, and (3) theft of property or compensation by a teacher. Teacher's argument was not persuasive. The Statement of Charges sets forth a pattern of behavior constituting sexual harassment, if true. Moreover, the definition of immoral conduct, as articulated by the court in *Crawford* and *Weiland*, is not limited to three categories of conduct.

Teacher's claim that the alleged conduct could be the result of mistake, inadvertence, ignorance, or misperception by students was likewise not persuasive. Teacher's inappropriate comments to students, as alleged, were not the product of mistake or inadvertence. Moreover, immoral conduct and bad judgment are not mutually exclusive, and immoral conduct as defined by *Weiland* does not require ill intent.

All arguments made by counsel in their briefs and at oral argument have been considered. As shown above, facts pleaded in the Statement of Charges, if true, are sufficient to support a claim against Teacher for immoral conduct and therefore constitute a basis for immediate suspension without pay under Education Code section 44939, subdivision (c)(1). Accordingly, the Motion for Immediate Reversal of Suspension is denied.

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## ORDER

The motion by Ulises Sanchez-Jimenez for immediate reversal of his suspension without pay is denied.

DATE: 04/04/2025

*Harden Sooper*

HARDEN SOOPER

Administrative Law Judge

Office of Administrative Hearings